ORDINANCE NO. 12

An ordinance conditionally creating a property tax and creating a fund for small and medium businesses.

Whereas the Wimbishville City Council recognizes that efforts must be made to correct the solvency of Wimbishville businesses
Whereas the City Council acknowledges the need to fund the Wimbishville city government

NOW THEREFORE,
THE PEOPLE OF THE CITY OF WIMBISHVILLE DO ORDAIN AS FOLLOWS:

Section 1. Title and Purpose

(a) This ordinance shall hereby be known as and may be cited as the Wimbishville Business Act
(b) The purpose of this ordinance is to establish a general property tax for the funding of the Wimbishville government and a Business Finance Fund to provide funding for small and medium businesses.

Section 2. Definitions

(a) A small business is defined as a business enterprise with fewer than 200 employees.
(b) A medium business is defined as a business enterprise with 200-500 employees.

Section 3. The Wimbishville Property Tax

(a) The City Council establishes a general graduated property tax on all properties within Wimbishville.
(b) Levels of the property tax will be determined based on the assessed value of a property:
    (i) Under $100,000: 1.1%
    (ii) $100,000 – $500,000: 2.5%
    (iii) $500,000 – $1,000,000: 3.5%
    (iv) $1,000,000 – $2,000,000: 4.5%
    (v) $2,000,000 – $10,000,000: 6.5%
    (vi) Over $10,000,000: 10%
(c) The Wimbishville City Council may adjust rates on the property tax with a majority vote of voters in a municipal election.

Section 4. Use of Property Tax Proceeds

(a) Proceeds of the property tax will be used to fund the Wimbishville government
(b) Proceeds are to be used for government purposes, including but not limited to:
    (i) Funding departments under the Wimbishville City Council
    (ii) Financing public works projects
    (iii) Providing financing to small and medium businesses under the provisions listed in Section 5
(c) Proceeds will be allocated through a budget passed by the Wimbishville City Council

Section 5. Voter Approval of Property Tax
(a) The Property Tax will take effect if approved by Wimbishville voters in a 2/3rds voting on the measure in an election
(b) The election on the Property Tax will be held one week after passage

Section 6. Business Finance Fund
(a) The Wimbishville City Council establishes a Business Finance Fund for the purposes of funding small to medium sized businesses within the Wimbishville area
(b) The Business Finance Fund will have a minimum spending allocation of $1,500,000, although more discretionary spending may be added through budget allocation
(c) The Business Finance Fund will provide 0.5% interest loans to small and medium businesses through an application process developed by the Business Finance Fund
(d) The Business Finance Fund may also arrange subsidies of up to $50,000 of small businesses within designating industries
(e) The Business Finance Fund will be lead by the Deputy Mayor with the Treasury Secretary serving an advisory role

Section 6. Adjustment of Work Days and the Minimum Wage
(a) The minimum wage established by Ordinance 5 (otherwise known as the Revised Wimbishville Fair Work and Work-Life Balance Act) will be lowered to $16 an hour
(b) Overtime compensation mandated by Ordinance 5 will be reduced to one-and-a-half (1.5) times the employer's hourly rate
(c) Overtime eligibility as established by Ordinance 5 will be increased to 45 hours in a single work week

Section 7. Severability

If any provision of this ordinance or any portion thereof is held invalid or unconstitutional, the remainder shall continue in full force and effect.

Section 8. Effective Date

(a) Unless otherwise stated in 5(b), all sections of this ordinance shall take effect one (1) week from passage.
(b) Sections 3 and 4 of this ordinance shall take effect one (1) week after approval by voters.

Section 8. Certification

The City Council shall certify the passage of this ordinance and ensure its publication as required by law.